

Court No. - 2

Case :- WRIT - C No. - 8747 of 2022

Petitioner :- Mohd. Kalim Alias Guddu Khan

Respondent :- State Of U.P. Thru. Its Addl. Chief /Prin. Secy.
Energy Deptt. Govt. U.P. Civil Sectr. Lko. And Ors

Counsel for Petitioner :- Inam Uddin Ahmed, Harsh Vardhan
Kediya, Shubham Tripathi

Counsel for Respondent :- C.S.C., Aprajita Bansal

Hon'ble Devendra Kumar Upadhyaya, J.

Hon'ble Saurabh Srivastava, J.

Heard Sri Inam Uddin Ahmad, learned counsel for the petitioner and Ms. Aprajita Bansal, learned counsel representing the Mandhyanchal Vidyut Vitran Nigam Limited.

By instituting these proceedings under Article 226 of the Constitution of India, the petitioner has made the following prayers :

I. To issue a writ, order or direction in the nature of Mandamus commanding the respondents to provide new electricity connection at the House No. B5 of the petitioner directly from the electric line running parallel to the House of petitioner expeditiously.

II. To issue a writ, order or direction in the nature of Certiorari quashing the impugned notice bearing No. 5231/Vivikh/BKT/Lesa, dated 15.12.2020 annexed as Annexure No.1 to the writ petition.

So far as the prayer No.(I) is concerned, unless and until the issue relating to electricity dues on the premises in question is decided, the prayer No.(I) cannot be granted.

So far as the prayer No.(II) is concerned, learned counsel for the petitioner has relied upon the provisions contained in Clause 6.8 (v) of the U.P. Electricity Supply Code, 2005 and has submitted that prior to serving the provisional assessment order, dated 15.12.2020, which is annexed as Annexure No.1 to the writ petition and which has been described by the petitioner to be a notice, the statutory requirement under the aforesaid provision was not fulfilled. Submission is that as per Clause 6.8(v), the inspection report is to clearly indicate the evidence substantiating that unauthorized use of electricity was found. It further requires that details of such evidence should be recorded in the report and the report shall be signed by each member of

the inspection team and handed over to the consumer or his/her representative at the site immediately under proper receipt.

It has also been argued by the learned counsel for the petitioner that inspection report was not served to the petitioner and accordingly without serving the inspection report under Clause 6.8(v) of the U.P. Electricity Supply Code, 2005 provisional assessment order has been served upon the petitioner. It has further been argued that unless and until the inspection report, which obviously would contain the evidence or supporting facts that unauthorized use of electricity was found, is served upon the consumer, he will not be in a position to submit adequate reply or make adequate representation to the provisional assessment order.

What we find from a perusal of the provisions contained in Clause 6.8 of the U.P. Electricity Supply Code, 2005 is that the purpose of furnishing the inspection report to the consumer containing evidences and other material as per Clause 6.8(v) is to enable the consumer to exercise his rights of furnishing adequate reply to the provisional assessment order. The said provision, in our considered opinion, is in conformity with the principles of natural justice. Unless and until, the very basis of provisional assessment order i.e. the inspection note/report is given to the consumer, he will not be in a position to submit adequate reply.

The submission of learned counsel for the petitioner is that inspection report/note could not be served upon the petitioner as he has not been residing in the premises at the time raid/inspection is said to have been conducted.

Ms. Aprajita Bansal, learned counsel representing the Mandhyanchal Vidyut Vitran Nigam Limited has, however, submits that the said inspection report/note was affixed on the premises and when the provisional assessment order was served upon the predecessor-in-interest of the petitioner, he submitted a reply urging that so far as the premises is concerned, he had sold the same in favour of the petitioner by means of sale-deeds dated 13.01.2016 and 05.09.2019. Accordingly, it is rather an admitted case that before passing and serving the provisional assessment order dated 15.12.2020, the inspection note/report based on the raid conducted, was not provided to the petitioner.

We have been informed that the petitioner has even furnished his reply to the provisional assessment order dated 15.12.2020 and the proceedings for making final assessment are going on.

In view of the aforesaid, to ensure that the petitioner realizes his

right of furnishing adequate reply to the provisional assessment order, we **dispose of** this writ petition with the following directions :

(1) The petitioner shall be served with the inspection note/report in terms of the provision contained in Clause 6.8(v) of the U.P. Electricity Supply Code, 2005. If it is, for some reason, not possible to serve the said inspection report/note personally to the petitioner, the same shall be sent by the respondent-Mandhyanchal Vidyut Vitran Nigam Limited through registered post and it will be deemed to be sufficient service of the inspection note/report upon the petitioner. Within 15 days from the date the inspection note/report is served or within 15 days from the date it is sent to the petitioner through registered post, whichever is later, the petitioner shall file supplementary reply to the provisional assessment order, dated 15.12.2020.

(2) Once the petitioner files supplementary reply to the provisional assessment order, the authorities concerned shall provide opportunity of hearing to the petitioner on some date to be fixed for the said purpose, intimation of which shall also be given to the petitioner through registered post. After hearing the petitioner in support of his case, the authority concerned shall pass appropriate final assessment order and the amount which may be found due shall be realized from the petitioner in accordance with law.

(3) We may make it clear that in case the petitioner does not furnish any additional reply under this order or he does not appear for personal hearing, the benefit of this order will not be available to him and in that eventuality, the authorities of the Mandhyanchal Vidyut Vitran Nigam Limited shall be free to take appropriate decision, pass final assessment order and to realize the amount which may be found due against him.

Order Date :- 6.12.2022

Sanjay